

Transport Operations Manager Deposition

Transport Operations Manager, Granite Heron Logistics, Inc.

Civil Action No. SYN-WDNC-24-CV-0520

Taken May 5, 2025 at the Fletcher exercise facility

Tess Holloway testified concerning controlled-transport procedures, the September 12, 2024 staging event, alarm routing, incident response, and corrective action. Maya Holt examined for Blue Ember. Tara Webb represented Holloway and Granite Heron. The fictional reporter administered the oath.

Holloway reviewed the work order, training records, route chronology, refrigeration data, CTX-9 report, interviews, and investigation before appearing. She personally supervised the facility but did not witness the first power connection. Her later arrival at the staging bay and her review of business records supplied parts of the account.

Q. What position did you hold?

A. Transport Operations Manager for the Fletcher controlled-temperature operation.

Q. Did you have authority to decide whether BE-214 could be released?

A. No. My responsibility was transport control and response. Blue Ember's quality group owned product disposition.

Holloway explained that her testimony would not supply a missing scientific opinion. She could authenticate how the operational chronology was built, describe which entries were contemporaneous, and acknowledge procedure failures without deciding the value or chemical condition of the payload.

Manager responsibilities and training

Q. What did your job include?

A. Driver and yard scheduling, procedure implementation, exception escalation, equipment coordination, record review, and corrective action. I reported material events to Adrian Locke.

Q. Were you familiar with QA-BE-GHL-017?

A. Yes. I acknowledged the protocol and helped brief assigned personnel.

Q. What was unusual about the BE-214 load?

A. It required deep-frozen operation, a validation-purpose record, a specific logger, and no authorized time outside the minus-eighty to minus-sixty band.

Q. Describe the standby-power rule.

A. Connect the proper cable, energize the source, confirm controller power and refrigeration status, then shut down tractor power. Physical insertion of a plug was not enough.

Q. How were alarms supposed to route?

A. The shipment profile should send a response message to active dispatch staff, with local observation as an independent safeguard.

Q. Did training tell employees to wait for the payload to warm visibly?

A. No. Sealed frozen product does not give a reliable visual warning. Personnel had to use instruments and records.

Readiness before September 12

Q. What equipment was planned?

A. Tractor GH-4821 and trailer TR-7714, set at minus seventy degrees Celsius.

Q. Was the trailer taken out of service before pickup?

A. No. Its pretrip and maintenance status allowed use.

Q. Did the Fletcher facility have standby capability?

A. Yes. Bay F-4 had the expected connection, but the source still had to be energized and verified.

Q. Was a backup freezer available?

A. Qualified frozen space existed, subject to access and transfer procedure. No transfer occurred during the relevant interval.

Q. What logger was listed?

A. CryoTrace CTX-9 serial CTX9-44721.

Q. Did you personally test the response profile before dispatch?

A. No. The ordinary checklist showed profile assignment, but our investigation later found that the exception routed to an inactive archive queue.

Q. Was that latent routing defect known beforehand?

A. I did not know it. A better positive test would have exposed it.

Q. Was a generic profile-name check enough under the revised understanding?

A. No. The lesson was to send and acknowledge a live test message before releasing specialized freight.

Arrival at Fletcher

Q. When did the vehicle arrive?

A. The route record shows 12:46 Eastern Daylight Time.

Q. When was it positioned at the bay?

A. At 12:49 in bay F-4.

Q. Was the trailer opened?

A. The event file does not show that the sealed payload was opened.

Q. Why did the vehicle stop?

A. It was a planned short operational stage before final delivery, not a freight transfer.

Q. What did the assigned person do at 12:52?

A. The standby cable was physically seated.

Q. Was the circuit energized?

A. No. The investigation concluded the breaker was not placed in the energized position.

Q. When was the tractor engine turned off?

A. At approximately 12:53.

Q. Did anyone perform the required positive verification?

A. We found no reliable evidence that the controller display and active refrigeration were checked after the transition.

Q. Would the expected display have been visible at the bay?

A. Yes. A person standing at the controls could confirm whether the unit was powered, cooling, and free of an unresolved alarm.

Q. Was the staging delay caused by Blue Ember?

A. No. It was an internal operational stop selected by Granite Heron.

Power-transition failure

Q. What happened after 12:53?

A. Tractor-supplied power ended, and the unenergized standby connection did not operate the refrigeration unit. The sealed trailer then warmed.

Q. Was the connector itself broken?

A. Post-event testing did not identify a connector failure. The principal problem was failure to energize and verify the source.

Q. Did procedure permit leaving the bay without looking at the controller?

A. No. That check was a critical step.

Q. Who performed the transition?

A. The personnel identity appears in the confidential operations record. For this exercise, the parties focus on the company process rather than naming an additional fictional employee.

Q. Are you blaming one worker alone?

A. No. The investigation addressed checklist design, supervision, alarm routing, and the lack of a two-person confirmation.

Q. Would proper verification likely have prevented warming?

A. It would have shown that the unit was not powered, allowing immediate correction while the load remained cold.

Q. Was Blue Ember involved in this transition?

A. No. It occurred entirely within our Fletcher operation.

Threshold crossing and missed telemetry

Q. When did the payload logger exceed the upper limit?

A. At 13:08.

Q. What happened at 13:10?

A. A telemetry exception associated with the shipment was directed to an inactive archive queue rather than the active response queue.

Q. Did a dispatcher acknowledge it?

A. Not then. That was a defect in the response path.

Q. Could local controls still have revealed the condition?

A. Yes. The refrigeration controller was dark because the unit lacked power, and routine yard observation should have caught it sooner.

Q. Was the CTX-9 output itself lost?

A. No. The device retained the time series. The routing problem affected notice, not the stored payload record.

Q. Did the logger show a sudden single spike?

A. It showed a warming and recovery curve, not one isolated erroneous point.

Q. Was any call made to Blue Ember at 13:08?

A. No. We did not recognize and escalate the threshold crossing at that moment.

Q. Did an unread archive message satisfy the response protocol?

A. No. The purpose was human response, so passive storage without acknowledgment was insufficient.

Discovery and refrigeration restart

Q. How was the problem discovered?

A. A yard check at 13:36 found the controller dark and prompted immediate attention.

Q. When did the payload reach its maximum?

A. The CTX-9 recorded minus 42.8 degrees Celsius at 13:37.

Q. What occurred at 13:38?

A. Tractor power and refrigeration were restarted. Personnel confirmed the unit was operating and kept the doors closed.

Q. Why not move the load to the backup freezer?

A. Once active refrigeration resumed, leaving the sealed trailer closed was judged the faster protective course. Earlier discovery could have allowed a different choice.

Q. When were you notified?

A. At 13:41. I reached bay F-4 at about 13:45.

Q. What did you do there?

A. I confirmed active cooling, directed preservation of records, asked dispatch to contact Blue Ember, and began an event chronology.

Q. Had the logger already begun cooling by then?

A. Yes, although it remained above minus sixty until 14:02.

Q. Did you order anyone to edit the peak after recovery began?

A. No. We preserved the maximum and the entire curve even though later readings improved.

Recovery and departure

Q. When did the CTX-9 return within the authorized band?

A. At 14:02.

Q. Does that yield a fifty-four-minute excursion?

A. Yes, from the 13:08 crossing through the 14:02 return.

Q. Did you average the warm period against later cold readings?

A. No. The event report preserved duration and maximum separately.

Q. When was Blue Ember's receiving team reached?

A. The contact record shows attempts to Dr. Solis at 13:49 and 13:58 and connection with receiving at 14:07.

Q. Was that compliant with immediate notice?

A. It was later than required. Our personnel acted after discovery, but the system should have surfaced the condition much earlier.

Q. When did the vehicle leave Fletcher?

A. At 14:18 after active cooling and route readiness were confirmed.

Q. Why continue to Asheville?

A. Blue Ember had frozen receiving and disposition authority, and same-day delivery after restoration was considered protective. Delivery occurred at 15:26.

Q. Did that decision receive a new quality waiver?

A. No. Continuing delivery protected custody but did not convert the excursion into an approved condition.

Communications and product authority

Q. Did Granite Heron ask Blue Ember to release the lot?

A. We supplied the transport facts and later questioned complete rejection. We did not have authority to release it.

Q. What did the 14:07 contact convey?

A. That an environmental exception had occurred, cooling was restored, and the shipment was en route. The full curve and final investigation followed.

Q. Was the precise maximum known during the first call?

A. The device report was still being assembled. Later records confirmed minus 42.8 at 13:37.

Q. Did anyone tell Blue Ember there was no excursion?

A. Not in the preserved communications.

Q. Did delivery at 15:26 waive anything?

A. No. The receiving signature transferred physical custody and Blue Ember quarantined the load.

Q. When did you learn the lot was rejected?

A. Through the September 16 disposition communication.

Q. Did you disagree scientifically?

A. I asked questions about assay results and possible use, but I am not a product-stability scientist. My testimony concerns transport compliance.

Source records and reconstruction

Q. Which times are contemporaneous?

A. The CTX-9 readings, route entries, controller information, contact log, and delivery record contain event-time data. The root-cause report later assembled them.

Q. How do you treat witness recollection?

A. We identify it as an interview source and compare it with system records. We do not overwrite a source timestamp to match memory.

Q. Was the 12:52 cable event recorded immediately?

A. The staging entry and later investigation together establish it. The absence of a positive verification entry is important.

Q. Did you create a graph?

A. A readable report was generated from the CTX-9 export. The export itself remains preserved.

Q. Could the graph alone prove product potency?

A. No. It depicts temperature. Scientific effect requires other expertise and evidence.

Q. Have relevant messages been preserved?

A. Yes, subject to ordinary privilege and the documented limits of the systems.

Q. Did Granite Heron intentionally discard a contradictory record?

A. I am unaware of any such conduct. Corrections and supplemental explanations are separately identifiable.

Corrective and preventive action

Q. What changed after the incident?

A. We required two-person confirmation for deep-frozen power transitions, including observation of the energized controller after tractor shutdown.

Q. What changed in dispatch?

A. Each specialized profile now receives a live test before release. Inactive queues cannot be selected without a supervisory override and warning.

Q. Did you revise yard rounds?

A. Yes. The interval and documentation for staged frozen trailers were tightened, and an unpowered display prompts immediate escalation.

Q. Were employees retrained?

A. Assigned staff completed focused instruction and practical demonstration. Completion records were retained.

Q. Was trailer TR-7714 retired?

A. No mechanical condition required permanent removal. It was inspected before return to service.

Q. Does corrective action mean Granite Heron accepts 4.2 million dollars in damages?

A. No. It confirms process improvements after a deviation, while causation and amount remain disputed.

Q. Does the company deny any operational responsibility?

A. We acknowledge the unsuccessful transition and delayed response as company-system failures.

Q. Were completion dates tracked for the corrective items?

A. Yes. The action file assigns owners, evidence, due dates, and effectiveness review rather than closing on a verbal assurance.

Contract compliance and causation boundary

Q. Did Granite Heron maintain the specified range continuously?

A. No. The logger was out of range for the stated interval.

Q. Was continuous range a carrier obligation?

A. Yes under the shipment documents.

Q. Are you qualified to say the validation lot remained suitable?

A. No. I can say there was no recorded package breakage and cooling recovered. Suitability is a different question.

Q. Do you challenge Blue Ember's good faith?

A. I do not accuse the quality personnel of dishonesty. Granite Heron disputes whether all financial consequences were necessary and recoverable.

Q. Was the warming caused by Blue Ember's receiving conduct?

A. No. The out-of-range interval ended before the load left our Fletcher facility.

Q. Was the power transition within Granite Heron's exclusive operation?

A. Yes.

Q. Does your testimony address the Cobalt Finch alternative?

A. Only at a high level. I was not the person who offered or evaluated that manufacturing slot.

Q. Can mitigation change who controlled bay F-4 on September 12?

A. No. It concerns later loss reduction and does not alter the historical custody fact.

Knowledge of later mitigation dispute

Q. When did you first learn Cobalt Finch had offered December capacity?

A. During claim review, after Blue Ember had declined it. I did not participate in the October 2 offer call.

Q. Can you testify that its suite was qualified for BE-214 by October 4?

A. No. Dr. Nia Calder and the records address capability and remaining work.

Q. Can you calculate 1.8 million dollars of avoided loss?

A. No. Dr. Elodie Park supplies the economic analysis.

Q. Why is the topic relevant to operations?

A. After a transport failure, we track replacement logistics and potential loss reduction. But a manufacturing-site choice exceeds my personal expertise.

Q. Do you know the proposed incremental cost?

A. The materials I reviewed state approximately 300,000 dollars for transfer and qualification.

Q. Did Granite Heron offer its own replacement facility?

A. No. We are a carrier, not a BE-214 manufacturer.

Q. Does the mitigation dispute erase the staging failure?

A. No. It concerns the amount of loss after the event, not whether the power transition occurred.

Concluding testimony

Q. Please confirm the principal event times.

A. Fletcher arrival 12:46; bay position 12:49; cable seated 12:52; tractor off 12:53; threshold crossing 13:08; misrouted exception 13:10; discovery 13:36; peak 13:37; restart 13:38; my notice 13:41; recovery 14:02; receiving contact 14:07; departure 14:18; delivery 15:26.

Q. Are all those times Eastern Daylight Time?

A. Yes.

Q. Did you alter them for this case?

A. No. They come from the record synthesis I described, with any approximation disclosed.

Q. Is anything in your testimony intended to modify the agreements' underlying dates?

A. No. The later filing of copies did not change their execution, issue, or effective dates.

The deposition ended after Holloway reviewed the descriptive exhibit list. She later signed the exercise transcript without a substantive correction. The names of subordinate personnel are omitted to keep the fictional record bounded; no inference should be drawn from that omission. Every entity, address, device, vehicle, shipment, and event described here exists only for appellate training.